

25STLC08471 25STLC08471

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-11

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Case Number: 25STLC08471 Hearing Date: August 11, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Barnholtz & Kugler, APC's Motion to Deem First

Set of Requests for Admission Admitted and for Sanctions is granted. Defendant Joseph

Weinmuller is ordered to pay sanctions of \$847.50 to Plaintiff's counsel within

20 days' service of this order.

Analysis:

Plaintiff Barnholtz & Kugler, APC ("Plaintiff") filed

the instant action for breach of contract and common counts against Defendant

Joseph Weinmuller ("Defendant") on November 10, 2025. The case was originally

assigned to Department 25 at the Spring Street Courthouse. On February 17,

2026, the Court denied Defendant's Motion to Quash Service. (Minute Order,

02/17/26.) Defendant filed an Answer to the Complaint on March 6, 2026.

On May 11, 2026, Plaintiff filed the instant Motion to Deem

First Set of Requests for Admission Admitted and for Sanctions. The Motion was

filed concurrently with a Motion for Order to Compel Verified Responses to Form

Interrogatories, Set One and for Sanctions. Both discovery motions were set for

hearing on June 11, 2026. On that day, Plaintiff filed a Notice of Withdrawal

of Motion to Compel Form Interrogatory Responses and appeared at the hearing to

represent to the Court that it intended to file a Peremptory Challenge pursuant

to CCP section 170.6. (Minute Order, 06/11/26.) The Court continued the hearing

to August 11, 2026. (Ibid.) Plaintiff filed the preemptory challenge on

June 15, 2026 and the following day, at the direction of the Supervising Judge,

the Court reassigned the action to Judge Maria Jhai in Department 26 at the

Spring Street Courthouse for all further proceedings. (Minute Order, 06/16/26.)

The hearing on the Motion to Deem First Set of Requests for Admission Admitted and for Sanctions was set for August 11, 2026 in Department 26 at the Spring Street Courthouse. Plaintiff served notice of the minute order on Defendant by first-class mail on June 16, 2026. (Notice of Ruling, filed 06/16/26.)

Discussion

Plaintiff served Requests for Admissions, Set One, on Defendant on February 4, 2026. (Motion, Barnholtz Decl., Exh. A.) As of the filing of the instant Motion on May 11, 2026, Defendant has not served responses to the discovery. (Id. at ¶13.) Plaintiff now moves for an order deeming the Requests for Admission admitted pursuant to Code of Civil Procedure section 2033.280. There is no requirement for a prior meet and confer effort before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) Due to Defendant's failure to timely serve verified responses and resultant waiver of objections, Plaintiff is entitled to an order deeming the Requests for Admission admitted. (Code Civ. Proc., § 2033.280.)

The Court is required to award sanctions under the moving statute. (Code Civ. Proc., § 2033.280, subd. (c).) However, the request for sanctions is excessive in light of the lack of any opposition and Plaintiff's counsel's ability to appear remotely. Plaintiff is awarded sanctions of \$847.50 based on 1.5 hours of time billed at \$525.00, plus the \$60.00 filing fee. (Motion, Barnholtz Decl., ¶15.)

Conclusion

Plaintiff Barnholtz & Kugler, APC's Motion to Deem First Set of Requests for Admission Admitted and for Sanctions is granted. Defendant Joseph Weinmuller is ordered to pay sanctions of \$847.50 to Plaintiff's counsel within 20 days' service of this order.

Moving party to give notice.